

TENTATIVE RULINGS
LAW AND MOTION CALENDAR

Judge Nathan Vu

Department N15

Hearing Date and Time: September 21, 2026 @ 9:00 AM

TENTATIVE RULINGS: The court will endeavor to post tentative rulings on this website by 3:00 p.m. on the day before the hearing. However, ongoing proceedings may prevent posting by that time or the court may have no tentative ruling on a matter.

Once a tentative ruling has been posted, the court may not entertain requests for continuance and may not consider additional papers.

ORAL ARGUMENT: The court will hear oral argument regarding law and motion matters on the hearing date and at the time stated above, unless all parties submit on the tentative ruling. Parties are not required to give notice of intent to appear.

If you wish to submit on the tentative ruling and do not intend to appear at the hearing, please inform opposing counsel and the court clerk by electronic mail n15@occourts.org or by telephone (657) 622-5615. If all parties submit on the tentative ruling or no parties or counsel appear for the hearing, then the tentative ruling shall become the final ruling.

APPEARANCES: Parties and counsel may appear at the law and motion hearing in-person or via Zoom. Persons appearing in-person shall come to Department N15 at the North Justice Center, 1275 N. Berkeley Avenue, Fullerton, CA 92832.

Persons appearing remotely must check-in online through the court's website at <https://www.occourts.org/general-information/covid-19-response/civil-covid-19-response/civil-remote-hearings> and then clicking on the button entitled "Department N15 Judge Nathan Vu".

Anyone having difficulty appearing remotely may contact the court clerk at (657) 622-5615.

All persons appearing remotely must abide by all applicable laws and rules, including Local Rule 375, and must obtain, test the functionality of, and learn how to use the Zoom application and all necessary equipment prior to the remote hearing. More information is available at <https://www.occourts.org/media-relations/civil.html>.

COURT REPORTERS: Court reporters employed by the court are NOT normally provided for law and motion matters in civil courtrooms. If a party desires a record of a law and motion proceeding, it is the party's responsibility to arrange for a privately-retained court reporter, who may appear in-person or remotely. Parties must comply with the Court's policy on the use of privately-retained court reporters, available at https://www.occourts.org/media/pdf/Private_Retained_Court_Reporter_Policy.pdf.

1	Young vs. Toll Brothers, Inc. 30-2024-01377444	<u>Motion to Vacate and Set Aside</u> Plaintiff Jennifer Young’s Motion to Vacate and Set Aside the Court’s February 20, 2026 Order Granting Defendants’ Motion for Summary Judgment is taken OFF CALENDAR. <u>Pending Motion</u> Plaintiff Jennifer Young moves to vacate and set aside the court’s February 20, 2026 order granting Defendants Toll Brothers, Inc.’s; Toll West Coast LLC’s, and Westminster Title Company, Inc.’s Motion for Summary Judgment. (See ROA #160.) <u>Prior Proceedings</u> On April 21, 2026, Plaintiff filed a Notice of Appeal of the Judgment on Defendants Toll Brothers, Inc., Toll West Coast LLC, and Westminster Title Company, Inc.’s Motion for Summary Judgment. (See ROA #175, #181.) The Notice of Appeal was filed after this motion was filed but before this motion could be heard. <u>Stay on Appeal</u> The Civil Procedure Code provides that: Except as provided in Sections 917.1 to 917.9, inclusive, and in Section 116.810, the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order, but the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order. (Code Civ. Proc., § 916, subd. (a).) Thus, the perfecting of an appeal results in an automatic stay of matters embraced or affected by the appeal, and it “divests the trial court of jurisdiction over the subject matter on appeal – i.e., jurisdiction in its fundamental sense.” (<i>Varian Medical Systems, Inc. v. Delfino</i> (2005) 35 Cal.4th 180, 198.) By its terms, Section 916 only stays “proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby,
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		including enforcement of the judgment or order.” (Code Civ. Proc., § 916, subd. (a).) The stay does not apply to “any other matter embraced in the action and not affected by the judgment or order” from which the appeal is taken. (<i>Ibid.</i>) “In determining whether a proceeding is embraced in or affected by the appeal, we must consider the appeal and its possible outcomes in relation to the proceeding and its possible results.” (<i>Varian Medical Systems, Inc. v. Delfino, supra</i>, 35 Cal.4th at p. 189.) “[A] proceeding affects the effectiveness of the appeal if the very purpose of the appeal is to avoid the need for that proceeding. In that situation, the proceeding itself is inherently inconsistent with a possible outcome on appeal and must therefore be stayed under section 916, subdivision (a).” (<i>Id.</i> at p. 190.) At the same time, an appeal does not stay proceedings on “ancillary or collateral matters which do not affect the judgment [or order] on appeal.” (<i>Betz v. Pankow</i> (1993) 16 Cal.App.4th 931, 938.) “A postjudgment proceeding that is ancillary or collateral to the appeal is not stayed ‘if the proceeding could or would have occurred regardless of the outcome of the appeal.’ If the postjudgment proceedings would not affect the effectiveness of the appeal, the proceedings are permitted.” (<i>City of Santa Maria v. Adam</i> (2012) 211 Cal.App.4th 266, 311, quoting <i>Varian Medical Systems, Inc. v. Delfino, supra</i>, 35 Cal.4th at p. 191.) In this motion, Plaintiff requests that the court vacate and set aside its order granting Defendants’ motion for summary judgment. In that same order, the court ordered that judgment be entered for Defendants Toll Brothers, Inc.; Toll West Coast LLC; and Westminster Title Company, Inc. (collectively, Defendants). (See ROA #160.) Plaintiff now has appealed the judgment entered in favor of Defendants. Thus, this is a proceeding that “directly or indirectly seek[s] to ‘enforce, vacate, or modify [the] appealed judgment or order.” (<i>Varian Medical Systems, Inc. v. Delfino, supra</i>, 35 Cal.4th at p. 189.)
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		If Plaintiff prevails on her appeal, this motion would be rendered moot. Thus, this proceeding is inherently inconsistent with a possible outcome on appeal. Viewed another way, if the court were to grant this motion, that would vacate or set aside the court's order dated February 20, 2026. In turn, that would undermine the judgment that Plaintiff seeks to challenge on appeal. Accordingly, this is a proceeding that affects the effectiveness of the appeal. It is not a proceeding that could or would have occurred regardless of the outcome of the appeal. As a result, this proceeding is stayed by Section 916 and the court lacks jurisdiction to consider the motion pending the appeal. For this reason, the court will take the motion off calendar. Defendants shall give notice of this ruling.
2	I.B.I Volcano Investments LLC vs. Nelson 30-2025-01513043	<u>Motion for Leave to Amend</u> Plaintiff's I.B.I. Volcano Investments LLC's Motion for Leave to File an Amended Complaint is GRANTED. Plaintiff I.B.I. Volcano Investments LLC shall file and serve Plaintiff I.B.I. Volcano Investments LLC's, First Amended Complaint, attached as Exhibit A to the Declaration of Adam A. Vukovic in Support of Plaintiff's I.B.I. Volcano Investments LLC's Motion for Leave to File an Amended Complaint, within 30 days of this ruling. <u>Pending Motion</u> Plaintiff I.B.I Volcano Investments LLC moves for leave to file Plaintiff I.B.I. Volcano Investments LLC's, First Amended Complaint. <u>Standard for Leave to Amend</u> The Civil Procedure Code provides that: The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a

		mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. (Code Civ. Proc., § 473, subd. (a)(1).) Leave to amend should be granted liberally at all stages of the proceedings in order to accomplish substantial justice for both parties and to resolve cases on their merits. (See <i>Hirsa v. Superior Court</i> (1981) 118 Cal.App.3d 486, 488-489; <i>IMO Development Corp. v. Dow Corning</i> (1982) 135 Cal.App.3d 451, 461.) As the Court of Appeal has explained: [T]rial courts should be guided by two general principles: (1) whether facts or legal theories are being changed and (2) whether the opposing party will be prejudiced by the proposed amendment. Frequently, each principle represents a different side of the same coin: If new facts are being alleged, prejudice may easily result because of the inability of the other party to investigate the validity of the factual allegations while engaged in trial or to call rebuttal witnesses. If the same set of facts supports merely a different theory – for example, an easement as opposed to a fee – no prejudice can result. (<i>City of Stanton v. Cox</i> (1989) 207 Cal.App.3d 1557, 1563.) With respect to the first requirement, “[t]he basic rule applicable to amendments to conform to proof is that the amended pleading must be based upon the same general set of facts as those upon which the cause of action or defense as originally pleaded was grounded.” (<i>Union Bank v. Wendland</i> (1976) 54 Cal.App.3d 393, 400-401.) In other words, “[t]he power to permit amendments is interpreted very liberally as long as the plaintiff does not attempt to state facts which give rise to a wholly distinct and different legal obligation against the defendant.” (<i>Herrera v. Superior Court</i> (1984) 158 Cal.App.3d 255, 259.) With respect to the second requirement, prejudice that may support denying amendment includes “delay in trial,
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		loss of critical evidence, or added costs of preparation.” (<i>Solit v. Tokai Bank, Ltd. New York Branch</i> (1999) 68 Cal.App.4th 1435, 1448.) It is “an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (<i>Kittredge Sports Co. v. Superior Court</i> (1989) 213 Cal.App.3d 1045, 1048; see also <i>Morgan v. Superior Court</i> (1959) 172 Cal.App.2d 527, 530 [“If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend”], citations and quotations omitted.) It is also an abuse of discretion to refuse amendment where that “results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense.” (<i>Morgan v. Superior Court, supra</i>, 172 Cal.App.2d at p. 530.) This is true even if leave to amend is sought as late as the time of trial or even during trial. (See <i>Higgins v. Del Faro</i> (1981) 123 Cal.App.3d 558, 564-565; <i>Rainer v. Community Memorial Hosp.</i> (1971) 18 Cal.App.3d 240, 251-256.) Thus, “[i]n the furtherance of justice, trial courts may allow amendments to pleadings and if necessary, postpone trial.” (<i>Honig v. Financial Corp. of America</i> (1992) 6 Cal.App.4th 960, 965.) Pursuant California Rules of Court rule 3.1324, a motion to amend a pleading shall: (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324(a).) In addition, California Rules of Court rule 3.132 requires that a separate declaration accompany the motion and must specify (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324(b).) In this case, Plaintiff seeks leave to amend the complaint to assert a new cause of action for Fraudulent Transfer –
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		Constructive Fraud under Civil Code section 3439.05 against Defendants Brian Nelson and Stacey Nelson. The amendments assert a new theory of liability based upon the same facts and circumstances alleged in the original complaint. Further, no party has pointed to any way in which Defendants were misled or prejudiced. In fact, Defendants have not filed an opposition or otherwise responded to the motion. Thus, they have waived any arguments regarding the motion. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see <i>DuPont Merck Pharmaceutical Co. v. Superior Court</i> (2000) 78 Cal.App.4th 562, 566 [holding that failure to challenge contention in brief results in the concession on that issue].) Finally, Plaintiff has complied with the requirements of California Rules of Court, rule 3.1324. Therefore, the court will grant the motion. Plaintiff shall give notice of this ruling.
3	Patel vs. Quality Escrow, Inc. 30-2026-01568098	<u>Motion to Intervene</u> Proposed Intervenors Marsha Starr's; Ronald R. Jimenez's; Michael A. Kucharski's; The Entrust Group, Inc.'s; Thomas A. Summer's; and Richard J. Walter's and Dawn-Michelle Walter's Motion to Intervene GRANTED on the condition that, within 7 days of this ruling, Proposed Intervenors: 1) File and serve a properly signed Declaration of Anthony P. Silva, Esq. in Support of Motion to Intervene, or 2) Provide evidence that the original Declaration of Anthony P. Silva, Esq. in Support of Motion to Intervene was signed and maintained in compliance with Rule 2.257(b). Provided Proposed Intervenors meet that condition, they shall file and serve the Verified Proposed Complaint in Intervention, attached as Exhibit G to the Declaration of Anthony P. Silva, Esq. in Support of Motion to Intervene, within 30 days of this ruling.

	<u>Pending Motion</u> Marsha Starr, Trustee of the Marsha Starr Trust; Ronald R. Jimenez, Trustee of the Ronald R. Jimenez Trust DTD 11/3/1998; Michael A. Kucharski, Trustee of the Michael A. Kucharski Family Trust Dated 11-23-10; The Entrust Group, Inc. FBO Richard Joseph Walter Account #52-00805; Thomas A. Summer, Trustee of the Thomas A. Summer Trust Dated 10/31/13; and Richard J. Walter and Dawn-Michelle Walter, Trustees of the Richard J. and Dawn-Michelle Walter Trust Dated June 26, 1998, move to intervene as defendants in this action. <u>Standard for Intervention</u> A non-party, who is referred to as an “intervenor,” may become a party to an action or proceeding between other persons by: (1) Joining a plaintiff in claiming what is sought by the complaint; (2) Uniting with a defendant in resisting the claims of a plaintiff; or (3) Demanding anything adverse to both a plaintiff and a defendant. (Code. Civ. Proc., § 387, subd. (b).) The non-party must request leave to intervene from the court “by noticed motion or ex parte application,” which “shall include a copy of the proposed complaint in intervention or answer in intervention and set for the grounds upon which intervention rests.” Code. Civ. Proc., § 387, subd. (c).) The court must grant leave to intervene if either of the following requirements are met: (A) A provision of law confers an unconditional right to intervene; or (B) The person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties.
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		(Code. Civ. Proc., § 387, subd. (d)(1).) This is referred to as mandatory intervention. The court may grant leave to intervene, at its discretion, "if the [non-party] has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both." (Code. Civ. Proc., § 387, subd. (d)(2).) This is referred to as permissive intervention. In general, the party seeking to intervene must have a direct and immediate interest in the outcome of the litigation (i.e., he or she must stand to gain or lose by direct operation of the judgment). (See <i>Fireman's Fund Ins. Co. v. Gerlach</i> (1976) 56 Cal.App.3d 299, 303-305.) "A person has a direct interest justifying intervention in litigation where the judgment in the action of itself adds to or detracts from his legal rights without reference to rights and duties not involved in the litigation." (<i>Continental Vinyl Prods. Corp. v. Mead Corp.</i> (1972) 27 Cal.App.3d 543, 549.) In addition, a motion or application for leave to intervene must include a copy of the proposed complaint or answer in intervention. (Code Civ. Proc. § 387, subd. (c); see <i>Sutter Health Uninsured Pricing Cases</i> (2009) 171 Cal.App.4th 495, 513 [affirming denial of leave to intervene where proposed intervenor did not submit proposed complaint in intervention].) In general, Section 387 should be construed liberally in favor of intervention. (See <i>Simpson Redwood Co. v. State of California</i> (1987) 196 Cal.App.3d 1192, 1201.) In considering whether to exercise the court's discretion to permit intervention, the court considers whether intervention will enlarge the issues raised by the original parties, and whether the reasons for intervention outweigh any opposition by the existing parties. (<i>Truck Ins. Exch. v. Superior Court</i> (1997) 60 Cal.App.4th 342, 346.) Whether intervention should be allowed in a particular case "is best determined by a consideration of the facts of that case" and the decision is ordinarily left to the sound discretion of the trial court. (<i>Fireman's Fund Ins. Co. v. Gerlach, supra</i>, 56 Cal.App.3d 299, 302.) Here, Proposed Intervenor submit evidence that after the borrower defaulted, the Proposed Intervenor completed a non-judicial foreclosure sale of property that is the subject of this case (Property). (See Decl. of
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	Anthony Silva, Esq. in Supp. of Mot. to Intervene (Silva Decl.), ¶ 3.) Proposed Intervenor also establish that a Trustee's Deed Upon Sale was recorded on July 21, 2026, vesting title to the Property in the Proposed Intervenor. (See Silva Decl., ¶ 4, Exh. E.) As a result, the Proposed Intervenor have a direct interest in the Property. (See Silva Decl., ¶ 2.) Proposed Intervenor also show that disposition of this action may impair their ability to protect their interest in the Property. The evidence shows that on June 12, 2026, Plaintiffs recorded a <i>lis pendens</i> against the Property that may interfere with Proposed Intervenor ownership interest and their ability to sell the Property. (See Silva Decl., ¶ 5, Exh. F.) In addition, the Civil Procedure Code requires that a nonparty with an interest in real property that is affected by a <i>lis pendens</i> "shall obtain leave to intervene from the court at or before the time the party brings the motion to expunge." (Code Civ. Proc., § 405.30.) Thus, intervention is necessary for the Proposed Intervenor, as current title holders, to seek expungement of the <i>lis pendens</i> affecting the Property. Her, the motion is timely as the Proposed Intervenor acted shortly after acquiring title and after Plaintiffs declined to withdraw the <i>lis pendens</i>. (See Silva Decl., ¶¶ 4, 6-9, Exh.s A-C, E.) Proposed Intervenor have complied with all the procedural requirements for this motion, including submitting a proposed complaint in intervention setting forth the grounds for intervention. (See Silva Decl., ¶ 10, Exh. G.) Finally, no existing party contends that it can adequately represent the interest of Proposed Intervenor as the current title holders of the Property or that it will be prejudiced by the intervention. In fact, no current party to this action has filed an opposition or otherwise responded to the motion. Thus, they have waived any arguments regarding the motion. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see <i>DuPont</i>
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		<i>Merck Pharmaceutical Co. v. Superior Court</i> (2000) 78 Cal.App.4th 562, 566 [holding that failure to challenge contention in brief results in the concession on that issue].) Therefore, the Proposed Intervenor has met the requirements for mandatory intervention, and in the alternative, permissive intervention. The court will grant the motion. <u>Unsigned Declaration</u> However, the Declaration of Anthony P. Silva, Esq. in Support of Motion to Intervene that was filed with the court is unsigned. A document signed under penalty of perjury and filed electronically is deemed signed only if the declarant either signed the document electronically in compliance with rule 2.257 or physically signed a printed copy before filing. (See Code Civ. Proc., § 1010.6, subd. (e)(2)(B); Cal. Rules of Court, rule 2.257(b).) If the latter procedure was used, the electronic filer must maintain the original signed declaration and make it available for inspection and copying upon request. (Cal. Rules of Court, rule 2.257(b)(2).) Here, the record does not establish whether Anthony Silva physically signed an original declaration before it was electronically filed. Accordingly, Proposed Intervenor must either file and serve a properly signed declaration or establish at the hearing that the original declaration was signed and maintained in compliance with Rule 2.257(b). If Proposed Intervenor fails to do so, the motion will be denied. Proposed Intervenor shall give notice of this ruling.
4	Thibodeau vs. Knowleton Manor Homeowners Association 30-2025-01511020	<u>Motion to Quash</u> Cross-Defendant 810 Baker Street, LLC's Motion to Quash Service of Cross-Complaint is taken OFF CALENDAR pursuant to the Notice of Withdrawal of 810 Baker Street, LLC's Motion to Quash Service of Cross-Complaint filed September 17, 2026 (ROA #78.)

5	Perez vs. General Motors, LLC 30-2024-01425638	<u>Motion for Attorney's Fees</u> There is no full written tentative ruling on this matter as the court needs to hear from the parties or their counsel on some undetermined or ambiguous matters, as explained below. The court will provide the following guidance to the parties and their counsel: 1. The court is inclined to find that the hourly rate requested by Plaintiff's Counsel is reasonable given their background and experience. However, the work done in this case did not require counsel with the high level of seniority as Attorney David Barry and Attorney Kristopher Sorit. Therefore, the hourly rates of Plaintiff's Counsel should be capped at \$550 per hour. 2. The court is inclined to find that the hours billed by Plaintiff's Counsel are reasonable except: a. It is uncertain whether Plaintiff's Counsel will expend 3 hours traveling to the hearing as it appears to be the custom of Plaintiff's Counsel to appear at all hearings remotely. b. It is unclear why Plaintiff's Counsel is withdrawing the request for an award for 6.4 hours of Attorney David Barry's time because Defendant did not file a motion to tax or strike costs. In fact, Defendant did file a motion to tax or strike costs and it was fully briefed and argued. 3. The court is inclined to deny the request for a multiplier, as this was a straightforward case that did not include any circumstances that would support a multiplier. 4. The court has already decided the issue of costs in its ruling on Defendant General Motors LLC's Motion to Tax Counsel's Memorandum of Costs. (See ROA #133.)
6	Davis vs. Chubb Insurance Company	<u>Motion for Sanctions</u>

	30-2026-01538471	Non-Party Federal Insurance Company's Motion for Sanctions Against Kathryn M. Davis and Her Counsel Cristian L. Peirano is CONTINUED to February 20, 2027 at 9:00 a.m. in Department N15 pursuant to the stipulation of the parties and the order of the court issued September 18, 2026.
7	Janz vs. FCA US, LLC 30-2024-01417960	<u>Motion for Summary Adjudication</u> There is no written tentative ruling on this matter. The court will hear from the parties or their counsel at the hearing on the motion and may provide an oral summary tentative ruling at that time.
8	Klinke vs. Hoag Memorial Hospital Presbyterian 30-2025-01457783	<u>Demurrer and Motion to Strike</u> Defendant Hoag Memorial Hospital Presbyterian's Demurrer to Plaintiff's First Amended Complaint and Motion to Strike Portions of Plaintiff's First Amended Complaint is CONTINUED to December 22, 2026 at 9:00 a.m. in Department N15, pursuant to the court's orders issued September 16, 2026 (ROA #116).
9	Barney vs. Hochman Salkin Toscher Perez P.C. 30-2026-01538760	<u>Demurrer and Motion to Strike</u> Defendants Hochman Salkin Toscher Perez P.C.'s and Steven Toscher's Demurrer to Plaintiff's First Amended Complaint and Motion to Strike Portions of Plaintiff's First Amended Complaint is CONTINUED to September 28, 2026 at 9:00 a.m. in Department N15, pursuant to the court's orders issued September 17, 2026 (ROA #127).